
Interview Details

On August 21, 2010 at approximately 7:30 a.m., [REDACTED] walked from her friend's house near [REDACTED] to the grocery store at [REDACTED] and bought herself a sandwich. She then walked on [REDACTED], where she was going to make a right on her way to her mother's house, which is located on [REDACTED]. [REDACTED] indicated that she had surgery on her right knee on June 29, 2010 and since then she had been staying with her mother. [REDACTED] had a grocery bag, a sandwich and soda and a pocketbook that was around her waist like a fanny-pack. She was wearing a pink tank top, army fatigue pants and pink and black sneakers. She also had an immobilizer underneath her pants on her right leg to prevent her leg from bending that caused her to walk slowly.

As [REDACTED] left the store and walked down the hill on [REDACTED] she crossed the street and noticed that there was a commotion near the intersection of [REDACTED]. She saw a lot of police in uniforms and civilians in the middle of the street along with a paddy-wagon and several marked RMPs. She was not sure how many people and police there were and did not know what was really going on; all she could tell was that the police were pushing people and trying to clear them from the area. Since the people and the commotion was in the street, [REDACTED] assumed that they were clearing the street and pushing people towards the sidewalks. Cars were traveling the wrong way on the one-way street and everything was very confusing. [REDACTED] was walking on the right side of [REDACTED] continuing on to her mother's house. No officers directed her to leave the area at any time and she was away from the commotion and the crowd.

While she was in front of the [REDACTED] restaurant [REDACTED], PO1 said, "Get the fuck out of the way" and pushed [REDACTED] from behind. PO1 was a Hispanic female who was about 5'6" tall, had a small body, had dark colored hair in a pony tail, was in uniform and appeared to be in her 20s or early 30s. No other officers were in the immediate area. [REDACTED] was pushed towards the restaurant and she braced herself against the door of the restaurant, which was locked. [REDACTED] did not move very far because she went into the door and because of the immobilizer. PO1, who was not happy that [REDACTED] was not moving as fast as she wanted, began cursing at [REDACTED] and told her multiple times to, "Hurry the fuck up." [REDACTED] tried to explain that she was going, that she did not have anything to do with what was going on and that she had a leg brace on. PO1 asked, "What did you say?" and then took out her baton and struck [REDACTED] in her upper body. [REDACTED] backed up and blocked the blows with her right forearm. [REDACTED] was hit three or four times, with most of them hitting her forearm. [REDACTED] tried to also tell PO1 that she had not been doing anything wrong.

After PO1 hit [REDACTED] PO2 (a white male) grabbed [REDACTED] shoulders from behind, causing her to fall down on her back. PO1 grabbed her right leg and PO3 (white male) grabbed her left leg and the three officers began dragging her from in front of Three Way to the middle of the street to an RMP near where the commotion was occurring. [REDACTED] estimated that this distance was about three store lengths away. While the officers were dragging her, [REDACTED] who was crying at this point, looked up at PO2 and tried to tell him that she had a leg brace on. The officers dragged her to the RMP and then sat her up and rear hand-cuffed her. [REDACTED] continued to try to tell the officers that she recently had surgery on her leg and that she had a leg brace on and when the officers were telling her to get into the vehicle she attempted to tell them that her leg could not bend because of the immobilizer. PO1 continued to curse at [REDACTED] and told her to shut up and she and PO2 pushed [REDACTED] into the back of the RMP. Because of the partition and her leg brace, [REDACTED] could not sit up and bend her leg so she just laid on her back on the back seat.

[REDACTED] was then transported to the 46th Precinct. PO1 took her to the back of the precinct and searched [REDACTED] outside of the cells. During the search, PO1 felt [REDACTED] brace under her pants and asked her what it was. [REDACTED] told her that it was an immobilizer from a recent surgery and that that is what she had been trying to tell the officer from the beginning. PO1 said okay and told her to wait a second and that she would let [REDACTED] leave with no problems. PO1 did not indicate that she was going to give [REDACTED] any summonses. [REDACTED] told PO1 that she wanted her name and badge number because she was going to make a complaint against her for arresting her for no reason. PO1 responded, "Since you're going to make a complaint you can get your ass back in the cage." [REDACTED] was then placed in the cells where she was kept for approximately two hours.

When [REDACTED] was removed from the cell, she had to sign a release form, and then was taken to the front of the stationhouse in front of the desk. Behind the desk sat PO4, a black female in uniform who looked young and had a small body type. [REDACTED] could not recall what hair style she had. [REDACTED] was still handcuffed, and PO1 was writing out two summonses for [REDACTED] at the desk. While at the desk, [REDACTED] was looking at PO1's badge and was trying to remember the badge number. PO4 noticed this and asked her if she would like PO1's name and badge number. [REDACTED] told her that she did and PO4 wrote PO1's name and badge number on a piece of paper. PO1 did not say anything while PO4 wrote down her name and badge number but she

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noticed her doing so. The handcuffs were taken off of [REDACTED] and PO4 gave her the piece of paper and PO1 gave her two summonses. As [REDACTED] was walking down the steps of the precinct towards the exit, PO1 came up to her and grabbed the piece of paper from her hand. PO1 told her that she did not need her name and badge number and told her to leave the precinct. [REDACTED] objected, indicating that she knew her rights and that she was allowed to get her name and badge number. PO1 told her to leave or that she could get right back into the cells. [REDACTED] who was in tears, was telling her that it was not right and was also telling several officers near the exit who saw what was happening. These officers were males of mixed races in uniform. The other officers told her that she better do what PO1 said or else PO1 would re-arrest her. PO4 did not hear this interaction. [REDACTED] then left the precinct.

After she was released from the precinct she went to [REDACTED] Hospital. Her right forearm was bruised and swollen from being struck with the baton and she had scrapes and bruises to her back and her butt from being dragged. X-rays were conducted and indicated that she had no broken bones. [REDACTED] also indicated that her immobilizer had been ripped when she was pushed into the RMP, so her leg was not immobilized and she aggravated that injury. [REDACTED] never found out why the officers were at the scene in the first place and did not know of anyone else being arrested. She did not know the names of any witnesses but indicated that several people who knew her family ran to her mother's house and told her what was going on. She also indicated that one of these individuals recorded the incident on a cell phone, but she did not know that individual's name.

Interview Details

PO Angela Polancobrito was interviewed at the CCRB on March 22, 2011. She is assigned to the 46th Precinct. She worked, in uniform, from 11:15 p.m. on August 20, 2010 until 7:50 a.m. on August 21, 2010. She was assigned to patrol sectors I and J with PO Colon in a marked RMP.

PO Polancobrito had memo book entries regarding the incident. However, she did not bring her memo book to the interview. Although the undersigned investigator had a copy of her memo book that was provided by IAB, the copy is barely legible. PO Polancobrito was given this copy to read from and she could only make out this portion of her entry: [REDACTED] who was apparently intoxicated and received an earlier summons for an open container by another officer, she swung at her and PO Polancobrito had to display the baton and used the minimal amount of force. [REDACTED] was refusing to move and did not comply with officer's orders. [REDACTED] swung at the officers on more than one occasion at the scene.

PO Polancobrito indicated that she would fax the undersigned investigator a better copy of her memo book.

When PO Polancobrito offered her initial statement, she indicated that an 85 was called by Lieutenant Williams and when she got to the incident it was a mess and people were all over the place. PO Polancobrito had to display her baton, as did other officers. She recalled one female jumping on other officers and that when she tried to take her away she jumped on her and tried to swing at her. PO Polancobrito was ordered by Lieutenant Williams to put her in handcuffs because she was acting out of control. This female had a very strong odor of alcohol on her breath and was acting like an EDP. PO Polancobrito said, "I put the cuffs on her to take her to the stationhouse. Then when I took her to the stationhouse she was yelling at me." PO Polancobrito indicated that the female was telling her that that she better let her out of there and that her father was a sergeant on the job and if she did not let her go her father would get her to lose her job. It was almost as if she was daring PO Polancobrito to give her a summons. PO Polancobrito ignored her and wrote her a summons. She gave her the summons and took her out of the cells but she refused to leave and said that everyone was going to listen to her and they would all lose their jobs. The female then went outside and sat down on the steps of the stationhouse and was blocking the door. Lieutenant Williams ordered PO Polancobrito to once again place her in handcuffs and put her in the cells, let her cool off, and then issue her another summons. PO Polancobrito then let her go.

After PO Polancobrito provided her statement, she was asked several questions by Investigator Buchanan and Investigator Lizarazo. PO Polancobrito provided the following information in response to these questions. She indicated that she did not know why the 85 was called. There were a lot of civilians at the scene and they very irritated and were all acting out of control as if they were drunk. A lot of officers responded to the scene but PO Polancobrito could not approximate how many were there. She did not recall seeing any officers in plainclothes or from another command.

When asked if the female who was jumping on the officers was [REDACTED] PO Polancobrito responded that she did not recall and that she just recalled that it was a female. She did not recall what the female looked like. When she first arrived at the scene, the civilians were acting out of control and were jumping at the officers, swinging at the officers, pushing them and refusing to step back. PO Polancobrito had no choice but to take out her baton and used it to push them back to prevent herself from getting hurt. She grabbed her baton on either end with both hands and was using it to push people back. PO Polancobrito did not strike them with her baton.

In regards to the female, PO Polancobrito indicated that when she got to the scene, the female was refusing to leave. An officer had told her to step away but the female did not comply. PO Polancobrito then told her to move but she still refused. The officer who had originally told her to move had his back to her and then the female jumped on his back and was hanging onto him by his shoulders. PO Polancobrito could not recall the identity of this officer. PO Polancobrito saw this and to prevent the officer from getting hurt she grabbed the female and put her to the wall. The female was flailing her arms, swinging at PO Polancobrito and pushing her. PO Polancobrito indicated that she had her baton displayed before but did not recall using against this female. PO Polancobrito smelled alcohol on her and she was acting uncontrollable and elbowing her. Another officer, whose identity PO Polancobrito could not recall, came over and helped her to handcuff her. PO Polancobrito did not recall if she transported this female to the precinct. PO Polancobrito also indicated that after the female had jumped on the other officers back Lieutenant Williams had ordered her to arrest her. PO Polancobrito did not recall handcuffing or interacting with any other civilian. She did not recall hitting any civilian with her baton.

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PO Polancobrito found out [REDACTED] had received a summons for an open container during the search at the precinct. PO Polancobrito recalled that [REDACTED] had received the summons at approximately 2100 hours the night before. [REDACTED] also had told her that she had the summons.

While PO Polancobrito was doing [REDACTED] pedigree outside of the stationhouse when they first arrived there, [REDACTED] was threatening her that if she gave her a summons and her father would get her in trouble. PO Polancobrito placed her in the cells and then gave her a summons for disorderly conduct. After she gave her the summons she told [REDACTED] that she was ready to go but [REDACTED] refused to leave and told her that she would not get away with this and that she would regret it. [REDACTED] sat on the steps to the stationhouse and was blocking the door and refused to move. She was continuing to yell and threaten them. PO Polancobrito told her a couple of times to move as did other officers. PO Polancobrito could not recall the identities of these officers. [REDACTED] refused to move and PO Polancobrito handcuffed her and placed her back in the cells. PO Polancobrito called [REDACTED] father to see if [REDACTED] was telling the truth. The father was in the NYPD and told PO Polancobrito to do what she had to do and give her a summons because his daughter was out of control and he was tired of her bad behavior. [REDACTED] was held in the cells for about 10 minutes before she was released with a second summons for disorderly conduct. [REDACTED] was still saying things after receiving this summons but left.

PO Polancobrito did not recall telling [REDACTED] to get the "fuck" out of her way. She did not recall pushing [REDACTED] or hitting her with her baton. She did not recall [REDACTED] being dragged to the RMP after she was handcuffed. PO Polancobrito did not recall [REDACTED] complaining about a brace on her leg or any other injuries. She did not recall her asking for her name and badge number. PO Polancobrito indicated that she would have received this information anyway from the summons. PO Polancobrito did not recall ever telling [REDACTED] that she would be released without any problems. She did not recall telling [REDACTED] that since she was going to make a complaint she could get her "ass" back in the cage. She did not recall [REDACTED] ever indicating that she was going to make a complaint. She did not recall if another officer ever provided [REDACTED] with her name and shield number on a piece of paper. PO Polancobrito indicated that she had threatened to arrest her outside of the stationhouse when she had refused to move and told [REDACTED] that she was "gonna have to put her right back in the cage."

PO Polancobrito was then showed the video clip that was provided by [REDACTED] attorney. Immediately after watching the clip, PO Polancobrito indicated that that location of the video clip was not where the incident originated. She indicated that the incident originated at [REDACTED] and that the location on the video was [REDACTED]. When she was asked if the officer using the baton in the video was her, PO Polancobrito responded, "I cant even see my face... if that's me." She did not recall if that was her or not and did not recall if the civilian being hit with the baton was [REDACTED]. She indicated that the video did not help her recall anything more about the incident and that the incident had happened a long time ago. She indicated that she gets many jobs every day and its hard for her to even remember what she did last night. She reiterated that she did not know if she was the officer in the video and that it was kind of blurry. PO Polancobrito indicated that the incident started at [REDACTED] and that there were people all the way from there to [REDACTED]. The officers were trying to move the arrested people from [REDACTED] through all the people. PO Polancobrito could not recall the identities of any other officers in the video.

Interview Details

Lieutenant Joyce Williams was interviewed at the CCRB on April 4, 2011. At the time of her interview she was assigned to Detective Borough Bronx. On August 21, 2010, she was assigned to the 46th Precinct. She worked, in uniform, from 11:00 p.m. on August 20, 2010 until 7:45 a.m. on August 21, 2010. She was assigned as the platoon commander and worked alone. She was assigned to marked RMP [REDACTED]

Lieutenant Williams's memo book entries regarding the incident are summarized as follows: At 7:15 a.m., Lieutenant Williams arrived at [REDACTED] in response to a call for additional units made by 46th Precinct sector CD. Upon her arrival she saw the officers struggling with the perp, who refused to put his hands behind his back and continued to struggle with MOS. Lieutenant Williams maced him until he put his hands behind his back and then he was handcuffed. The 46th PCT sector CD unit identified another person at the scene to be arrested and he ran. They chased him to [REDACTED] where PO Hobson and PO Guzman placed him under arrest for OGA. Two females were also placed under arrest for disorderly conduct for yelling and screaming at the scene and failing to disperse when told to. At 7:20 a.m. they had 6 arrests and they were removed to the precinct by different cars. There were numerous units at the scene, including officers from the 48th PCT. The 46th PCT sector CD unit already had two in the vehicle for fighting and one for PINS warrant. Sector responded to a pickup of juvenile who jumped out of a window. When they tried to apprehend him PO Vega got scraped on the chin and his partner got scraped on the hand. At 7:45 a.m., Lieutenant Williams arrived at the precinct. At 8:30 a.m., while 1 female was being released she started cursing and harassing PO Polancobrito by putting her face towards PO Polancobrito's face. She had to be told to keep her hands behind her back while being brought to the desk to be released. Lieutenant Williams told PO Polancobrito to put her back in the cell and give her another summons.

On August 21, 2010, Lieutenant Williams recalled hearing sector C and D, comprised of PO Joy and PO Vega, screaming into the radio for additional units. Lieutenant Williams was the first to arrive and saw both officers on the floor struggling with one perpetrator. Lieutenant Williams maced him but he still would not budge. After a little while, Lieutenant Williams assumed that once the mace set in, he put his hands behind his back and they were able to handcuff him. While they were doing that either PO Vega or PO Joy pointed out another individual who needed to be arrested and PO Hobson, PO Guzman and Lieutenant Williams chased after him. They followed him into [REDACTED] into apartment where either PO Hobson or PO Guzman were able to get a hand on him and handcuff him. Lieutenant Williams did not assist in handcuffing this individual. She did not recall what these two individuals were charged with. After the second individual was arrested they came out of the building.

When she exited the building she noticed that a large crowd had formed on [REDACTED]. They were in the middle between [REDACTED] and were perhaps a little closer to [REDACTED]. Lieutenant Williams indicated that near [REDACTED] the crowd was not bad. She estimated that about 10 – 20 people were a part of this crowd on [REDACTED] and she assumed that they were friends of the arrested individuals or were from the same building as them. The crowd was near the RMPs, which were parked in the middle of [REDACTED]. The crowd were coming towards the officers and kept on trying to argue with them. Some were also speaking to the perps who were already in the vehicles. The officers were telling everyone to leave and that they had to go because they had a bunch of people under arrest and were trying to get the situation under control. Lieutenant Williams did not recall how many officers responded, but indicated that some officers from the 48th Precinct responded, although most of the officers were from the 46th Precinct. At that point Lieutenant Williams believed they had four under arrest.

Lieutenant Williams indicated that she vaguely remembered the other two females being arrested and that this occurred on the corner of [REDACTED] not far from where the RMPs were. There were too many people on the corner so Lieutenant Williams made a general order to nearby officers to get them out of there. She did not specifically order any officers to do so. She recalled PO Polancobrito going over to the corner and going at it with a heavyset Hispanic female. Lieutenant Williams was shown an old mugshot of [REDACTED] and confirmed that she was the heavyset Hispanic female. Lieutenant Williams only recalled hearing loud talking back and forth between PO Polancobrito and [REDACTED]. PO Polancobrito was telling her to move and [REDACTED] was telling her that she did not have to go. Lieutenant Williams did not recall the other officers at the corner. She did not recall seeing how [REDACTED] was arrested or if an asp was used against her. She could not recall if any officers had their asps out but she was sure that some probably did. Lieutenant Williams could not recall the identity of the other female who was arrested at that corner. Lieutenant Williams never heard PO Polancobrito say, "Get the fuck out of my way."

Lieutenant Williams recalled one of the females that was arrested near the corner was uncooperative after she was arrested. While handcuffed, the female threw herself to the floor and was telling the officers that they could not touch her because she was

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a female. She was on the floor laid out on her stomach and two officers had to pick her up and place her in the RMP. The officers picked her up one on either side of her and grabbed her legs. They did not drag her on the floor. Lieutenant Williams did not recall if this female ever complained about a knee injury or having a leg brace on.

Lieutenant Williams then went to the precinct. While at the precinct she was in the area of the desk when PO Polancobrito was bringing out the heavyset Hispanic female, [REDACTED]. Lieutenant Williams that [REDACTED] was being released with a summons and that in the 46th Precinct when perps are being released they are walked from the cells to the front desk where they are given their summons. During this time they are not handcuffed but they must keep their hands behind their back. While [REDACTED] was being brought to the desk by PO Polancobrito she would not listen to the officer and they were yelling back and forth at each other. Lieutenant Williams was not sure what they were arguing about and just thought that [REDACTED] was angry at PO Polancobrito. When [REDACTED] got to the desk, Lieutenant Williams told her that she was getting released with a summons and that she needed to keep her hands behind her back and be quiet. [REDACTED] replied no and called PO Polancobrito a bitch and was cursing at her and getting very close to the officer's face. Lieutenant Williams did not recall [REDACTED] flailing her arms but remembered that they were not behind her back. PO Polancobrito was telling [REDACTED] to shut up and that she was getting released. Lieutenant Williams told PO Polancobrito that she could not release her the way she was and to put her back in the cell. [REDACTED] was not out for long and that part of the incident took as long as it took her to be walked from the cell to the desk. Lieutenant Williams could not recall if [REDACTED] ever spoke to the desk sergeant or if any officer gave [REDACTED] a piece of paper.

To Lieutenant Williams's knowledge, [REDACTED] never claimed that her father was a MOS. She did not know if PO Polancobrito had called her father to confirm that and thought that if either were the case PO Polancobrito would have said something to her. She did not recall hearing [REDACTED] ask PO Polancobrito for her name and badge number. She did not hear PO Polancobrito tell [REDACTED] that since she wanted to make a complaint she could get her ass back into the cage. [REDACTED] never went outside prior to being placed back into the cells. She was never sitting on the steps causing a scene or yelling or cursing.

Lieutenant Williams was shown the cell phone video clip. She confirmed that the location of the video clip was [REDACTED], around the block from [REDACTED]. She recognized the female officer using the asp as PO Polancobrito because she has worked with her for so many years and recognized her voice as well. She did not recall if the female in the pink shirt was [REDACTED]. Lieutenant Williams indicated that she did not recall seeing this happen during the incident. She identified one of the male officers going to assist PO Polancobrito as PO Eromenok of the 46th Precinct. She thought the other male officer going to assist was PO Eromenok's partner. She could not identify any other officers. She did not recall if the black female civilian in the white shirt was arrested. She identified herself as the black female officer in the white shirt running over to the area after the scuffle starts. Lieutenant Williams believed that the officers handcuffed a couple of people around the corner out of view of the clip.

Interview Details

PO Rafael Colon was interviewed at the CCRB on April 5, 2011. He is assigned to the 46th Precinct. He worked, in uniform, from 11:15 p.m. on August 20, 2010 until 7:50 a.m. on August 21, 2011. He was assigned to patrol sectors I and J with PO Polancobrito in marked RMP [REDACTED].

PO Colon had no memo book entries regarding the incident.

PO Colon and PO Polancobrito responded to a call for additional units made by PO Joy and PO Vega and were one of the last units to arrive to the scene. Approximately 20 officers were already at the scene. PO Colon saw only officers in uniform but indicated that some plainclothes officers may have been there as well. There was also a crowd of about 30 people on the corners of [REDACTED] and [REDACTED], most of the crowd was on the corner of [REDACTED]. The crowd was yelling at the officers but PO Colon could not make out what they were saying. Upon arriving, PO Colon walked up [REDACTED] to where PO Joy and PO Vega were in the middle of block between [REDACTED]. He asked them what had happened and to see if they were all right. PO Polancobrito had gone towards the corner of [REDACTED] with other officers. PO Colon did not know what happened at the corner with PO Polancobrito and never saw her arrest anyone. When PO Colon walked back to the corner of [REDACTED] he found PO Polancobrito and they left the scene and went to the precinct. PO Colon did not recall seeing PO Polancobrito interact with any arrested individuals at the precinct and did not recall her giving anyone summonses.

Interview Details

Sergeant Nicole McFarlane was interviewed at the CCRB on April 6, 2011. She is assigned to the 46th Precinct. On August 21, 2010, she worked, in uniform, from 6:55 a.m. until 3:52 p.m. She was assigned as the desk officer.

Sergeant McFarlane had no memo book entries regarding the incident.

Sergeant McFarlane recalled that when she came onto the desk two females [REDACTED] and [REDACTED] were in the holding cells. Lieutenant Williams was near the desk as well and while Sergeant McFarlane was doing entries, Lieutenant Williams told her that the two female prisoners would be released shortly so she would not have to worry about finding a female officer to sit with them. Since Sergeant McFarlane was just taking over the desk she was busy moving around doing paperwork and getting stuff ready. Suddenly Lieutenant Williams told her that [REDACTED] was not leaving because she had been mouthing off. Sergeant McFarlane did not see or hear [REDACTED] mouthing off because they were in the far off cells and did not know of any problems. [REDACTED] left later on and Sergeant McFarlane did not recall anything being wrong when she left or her saying much.

Sergeant McFarlane never spoke with [REDACTED] and never heard her ask for PO Polancobrito's name and shield number. Sergeant McFarlane did not think she gave [REDACTED] a piece of paper with PO Polancobrito's name and shield number on it. She never heard PO Polancobrito say that since she was going to make a complaint she could get her ass back in the cage. Sergeant McFarlane did not recall if [REDACTED] ever sat on the precinct steps while yelling and screaming, although she also said she would not have been able to see outside from the desk.

Interview Details

PO Steven Eromenok was interviewed at the CCRB on April 20, 2011. He is assigned to the 46th Precinct. He worked, in uniform, from 11:15 p.m. on August 20, 2010 until 7:50 a.m. on August 21, 2010. He was assigned to patrol sectors K and P with PO Dunlay in a marked RMP.

PO Eromenok had no memo book entries regarding the incident.

On August 21, 2010 at approximately 7:30 a.m., PO Eromenok and PO Dunlay responded to an 85. When they arrived at the scene there was already a lot of officers there. There were patches of groups of people around and the crowd was wild, interfering with the arrests and refusing to move away from the scene. PO Eromenok saw several people who were already in handcuffs and being led to police vehicles. PO Eromenok could not really remember what happened during the incident and indicated that it was a typical 85. He did not recall if PO Polancobrito was there. He did not recall assisting in handcuffing anyone. He did not see any officer using their asp or with it out. After the incident he went back to the precinct and immediately signed out. He did not interact with any of the arrested individuals.

PO Eromenok was shown the video but it did not refresh his memory regarding the incident. He could not tell who the officer was with the asp and indicated that it was too blurry. He could not recognize if he was one of the officers walking to assist the officer with the asp.

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PO Lawrence Dunlay was interviewed at the CCRB on April 20, 2011. He is assigned to the 46th Precinct. He worked, in uniform, from 11:15 p.m. on August 20, 2010 until 7:50 a.m. on August 21, 2010. He was assigned to sectors K and P with PO Eromenok in a marked RMP.

PO Dunlay's memo book entries regarding the incident are as follows: At 7:20 a.m. he responded to a call for additional units at [REDACTED].

On August 21, 2010 at approximately 7:30 a.m., PO Dunlay and PO Eromenok responded to an 85 at [REDACTED]. When they arrived there was a crowd of people who were hostile and were yelling and screaming at the officers. PO Dunlay saw someone get arrested but he could not recall what the person looked like or whether the person was a male or female. He was shown a mug shot photo of [REDACTED] but he did not recognize her. He did not assist in handcuffing any civilians and did not see any officer use their asp or have an asp out. He was unsure if PO Polancobrito was at the scene. PO Dunlay was shown the video clip but it did not refresh his memory regarding the incident. He could not tell who the officer with the asp was and indicated that incidents were occurring on the other side of the street so the officers' attentions were split.

Interview Details

PO Ronald Hobson was interviewed at the CCRB on May 3, 2011. He is assigned to the 46th Precinct. He worked, in uniform, from 11:15 p.m. on August 20, 2010 until 7:50 a.m. on August 21, 2010. He was assigned to patrol with PO Pichardo in a marked RMP.

PO Hobson had no memo book entries regarding the incident.

PO Hobson and PO Richardo responded to a call for additional units and when they arrived, there were already several RMPs at the scene. As they exited their vehicle, PO Hobson saw his female lieutenant speaking with a male. The lieutenant was telling the male that he had to back up and stop using foul language. The male was yelling and screaming at the police and was cursing as well, telling them that he did not give a “fuck” about the police. When the male refused to stop acting disorderly, the lieutenant directed PO Hobson to arrest him. The male ran and PO Hobson and PO Guzman gave chase. After about a block and a half PO Hobson and PO Guzman caught the man and, after a struggle, were able to handcuff him. Other officers came and brought the male to a vehicle while PO Hobson dusted himself off, got a drink of water and rested from the chase.

PO Hobson stayed at the scene for an additional 5 or 10 minutes. There was a crowd of about 50 people at the scene. PO Hobson indicated that some of these were just people walking to work who stopped to see what was going on while another portion of the crowd were people who he assumed was the reason he was called to the scene. These people were yelling at the police, telling them to get out of here, “fuck” the police and that they had not called for the police. PO Hobson did not see any civilians jumping on officers. PO Hobson knows PO Polancobrito but did not recall seeing her at the scene. People in the building along the street were throwing bottles and other debris at the officers and the officers left the scene. PO Hobson did not assist in any other arrests and did not see anyone else get arrested. The incident was pretty much over when he left the scene.

PO Hobson went back to the stationhouse and then went end of tour. He did not see any of the recently arrested individuals. PO Hobson was shown the video clip but it did not refresh his memory regarding the incident. He indicated that his RMP was parked near [REDACTED] He did not recognize any of the officers in the video.

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PO Mark Lopez was interviewed at the CCRB on May 10, 2011. He is assigned to the 46th Precinct. On August 21, 2010, he worked, in uniform, from 8:05 a.m. until 4:40 p.m. He was assigned to stationhouse security.

PO Lopez had no memo book entries regarding the incident.

PO Lopez did not recall the incident. He was explained the situation and still could not recall. He was shown the old arrest photograph of [REDACTED] but he indicated that she did not look familiar.

Interview Details

PO Gypsy Pichardo was interviewed at the CCRB on May 24, 2011. He is assigned to the 46th Precinct. He worked, in uniform, from 11:15 p.m. on August 20, 2010 until 7:50 a.m. on August 21, 2010. He was assigned to patrol sector H with PO Hobson in a marked RMP.

PO Pichardo had the following memo book entries regarding the incident: At 7:18 a.m. he responded to a call for additional units to [REDACTED]. At 7:28 a.m. he arrived back at the precinct.

On August 21, 2010, PO Pichardo responded to a call for additional units for a disorderly group. Upon arriving to the scene, other officers were there already as was about 10 – 20 people who were mostly intoxicated. PO Pichardo could tell they were intoxicated because they smelled of alcohol. This crowd was standing in the middle of the street and on the sidewalk and was refusing to move and was yelling at the officers who were trying to get them to disperse.

One heavyset Hispanic female was being told to move and refused and was yelling back at the male and female officers around her and was using obscene language. This female pushed an officer, PO Pichardo could not recall who, and then the officers attempted to arrest her. She resisted arrest by refusing to put her hands behind her back and pushing the officers. PO Pichardo could not recall if the officer used an asp against the female. PO Pichardo could not recall if he assisted in handcuffing the female but recalled that he assisted in putting her into an RMP. The female continued to resist by pushing back and trying to prevent the officers from putting her in the car. The female told the officers during this time that she had a leg brace on and that it caused her to have a hard time walking. Before being placed into the vehicle, the female fell on the ground on her own and PO Pichardo had to pick her up and put her in the car. PO Pichardo could not recall if she was pushed in or placed into the vehicle. PO Pichardo could not recall if he transported the female to the precinct. He did not see her at the precinct after the incident.

PO Pichardo never heard an officer yell, “Get the fuck out of my way.” He never saw an officer push the female who he helped arrest and never heard an officer tell her to hurry the fuck up. He never saw her struck with an asp. He never dragged her to the RMP after she was in handcuffs.

The interview went off the record at 9:13 a.m. to find an interview room that could show the video clip of the incident. The interview went back on the record at 9:14 a.m. with PO Pichardo, Investigator Buchanan and Louis Albert.

After seeing the video, PO Pichardo indicated that he did not think that was the female he assisted to arrest and that he did not think he was any of the officers pictured in the video. He did not recall that happening at the incident.

Interview Details

PO Ajish Joy was interviewed at the CCRB on May 26, 2011. He is assigned to the 46th Precinct. He worked, in uniform, from 11:15 p.m. on August 20, 2010 until 7:50 a.m. on August 21, 2010. He was assigned to patrol sectors C and D with PO Vega in a marked RMP.

PO Joy had the following memo book entries regarding the incident: At 7:15 a.m. he had a pick up of an assault at [REDACTED]. At 7:20 a.m. he had four arrests and two juvenile arrests. At 7:25 a.m. he transported juveniles to the precinct.

On August 21, 2010, PO Joy and PO Vega noticed a fight between two young boys at the corner of [REDACTED]. He and PO Vega exited the car and approached the individuals, who were rolling around on the floor hitting each other. PO Joy and PO Vega separated them and picked them up but they continued acting aggressively so they handcuffed them. PO Joy was holding one individual while PO Vega was holding the other one. Suddenly, another individual, [REDACTED], walked by and tried to grab the person that PO Vega was holding. PO Vega left his perp and went to stop [REDACTED] and they eventually began fighting. PO Joy grabbed the other boy and placed both of them in their RMP before going to assist in arresting [REDACTED] for OGA. They had a hard time arresting him so they called for additional units. They were finally able to get him to the ground but they were still unable to handcuff him. PO Joy's lieutenant arrived at the scene and pepper-sprayed [REDACTED], allowing the officers to finally handcuff him. PO Joy also got some pepper-spray in his face. An unknown officer took [REDACTED] and placed him in an RMP while PO Joy tried to wash the mace out of his eyes. PO Joy did not assist in any other arrests and did not see a Hispanic female get arrested.

Interview Details

PO Sabino Guzman was interviewed at the CCRB on June 2, 2011. He is assigned to the 46th Precinct. He worked, in uniform, from 11:15 p.m. on August 20, 2011 until 7:50 a.m. on August 21, 2010. He was assigned to patrol sectors M and N with PO Cruz in an marked RMP.

PO Guzman had no memo book entries regarding the incident.

PO Guzman did not recall the incident. He was explained the circumstances of the incident and still could not recall. He believed that he did not respond to the incident.